

STATE OF MICHIGAN
IN THE THIRD JUDICIAL CIRCUIT FOR THE COUNTY OF WAYNE
FAMILY DIVISION, DOMESTIC RELATIONS

ADRIENNE MARJORIE ROCKENHAUS,
Plaintiff,

v.

CONRAD ALAN ROCKENHAUS,
Defendant.

Case No. **26-104594-DO**

Hon. **Nicole N. Goodson**

**DEFENDANT'S MOTION TO INQUIRE INTO PLAINTIFF'S CAPACITY AND TO
APPOINT A GUARDIAN AD LITEM FOR PLAINTIFF**

NOW COMES Defendant, **Conrad Alan Rockenhaus**, appearing pro se, and respectfully moves this Honorable Court, pursuant to MCR 2.201(E) and the Court's inherent authority to protect litigants who may lack the capacity to participate in proceedings before it, to inquire into Plaintiff's present capacity and, if warranted, to appoint a guardian ad litem (or next friend, as the Court deems appropriate to Plaintiff's posture) to represent Plaintiff before this Court enters any dispositive relief. In support, Defendant states:

I. NATURE OF THE MOTION

1. Defendant seeks no tactical advantage by this motion and takes no position, in this motion, on Plaintiff's culpability for any conduct at issue in this or any other matter.
2. Defendant raises a single, narrow concern: that Plaintiff appears to be presently unrepresented and may lack the capacity to understand and participate in these proceedings, and that basic due process and MCR 2.201(E) counsel the appointment of a representative for Plaintiff before the Court enters any default judgment or other dispositive order against her.
3. Defendant brings this motion so that whatever this Court ultimately decides is procedurally sound and not subject to later challenge on the ground that Plaintiff was an unrepresented person who lacked capacity when relief was entered.

II. BACKGROUND RELEVANT TO CAPACITY

4. Plaintiff's counsel of record, Aldrich Legal Services, PLLC, was permitted to withdraw, with the order entered on or about May 21, 2026. Plaintiff has been unrepresented in this matter since that time.
5. Since the withdrawal of counsel, Plaintiff has not appeared in or defended this matter, and a default has been entered against her.
6. Plaintiff has departed her address of record at 26695 Ross Drive, Redford, Michigan, and her present physical whereabouts are unknown to Defendant, as reflected in the record of this matter.
7. Without asking the Court, in this motion, to characterize the nature of that conduct, Defendant represents in good faith that Plaintiff has engaged in a pattern of conduct outside these proceedings that raises a bona fide question whether Plaintiff presently understands the nature of these proceedings and is able to participate in them.

8. Taken together, the withdrawal of counsel, Plaintiff's non-appearance, her departure from her address of record, and the foregoing conduct raise a good-faith concern regarding Plaintiff's present capacity that the Court should resolve before entering dispositive relief.
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III. LEGAL STANDARD

9. MCR 2.201(E) governs the representation of incompetent persons in civil proceedings. Where an incompetent person who is subject to the jurisdiction of the court does not have a conservator or other legal representative, the court is to appoint a guardian ad litem or next friend to protect that person's interests, and the court may take up the question on motion or on its own initiative.
10. The protection exists for the benefit of the person whose capacity is in question and for the integrity of the judgment. A judgment entered against an unrepresented person who lacked the capacity to defend is vulnerable to later challenge; appointment of a representative before entry of relief cures that vulnerability and protects the finality of the Court's orders.
11. Appointment does not resolve, and is not a finding upon, the merits of any claim or defense, or the liability of the person for whom a representative is appointed. It ensures only that the person is represented while the merits are decided.
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IV. RELIEF REQUESTED

WHEREFORE, Defendant **Conrad Alan Rockenhaus** respectfully requests that this Honorable Court enter an Order:

12. Inquiring into Plaintiff's present capacity to understand and participate in these proceedings;
13. Appointing a guardian ad litem for Plaintiff, or a next friend as the Court deems appropriate to Plaintiff's posture, pursuant to MCR 2.201(E), if the Court determines that Plaintiff lacks the capacity to represent her own interests;
14. Deferring entry of any default judgment or other dispositive relief against Plaintiff until Plaintiff is represented by a duly appointed guardian ad litem, next friend, or counsel; and
15. Granting such other and further relief as this Court deems just and equitable.

Respectfully submitted,

/s/ Conrad A. Rockenhaus **Conrad Alan Rockenhaus**, Defendant Pro Se 116 Neely Road Hewitt, Texas 76643 (254) 340-7910 conrad@rockenhaus.net Dated: July 2, 2026

VERIFICATION

I, Conrad Alan Rockenhaus, declare under penalty of perjury that I have read the foregoing Defendant's Motion to Inquire into Plaintiff's Capacity and to Appoint a Guardian ad Litem for Plaintiff, that the factual statements contained therein are true and correct to the best of my knowledge, information, and belief, and that the matters stated upon information and belief are believed to be true.

/s/ Conrad A. Rockenhaus

Conrad Alan Rockenhaus

Dated: July 2, 2026

CERTIFICATE OF SERVICE

I, Conrad Alan Rockenhaus, hereby certify that on July 2, 2026, I served a true and correct copy of the

foregoing Defendant's Motion to Inquire into Plaintiff's Capacity and to Appoint a Guardian ad Litem for Plaintiff upon Plaintiff, Adrienne Marjorie Rockenhaus, who is self-represented, by the following methods: (i) electronic mail to adrienne@cannabytes.net; (ii) First Class U.S. Mail, postage prepaid, to her last known residential address at 26695 Ross Drive, Redford, Michigan 48239, with no representation as to current occupancy; and (iii) First Class U.S. Mail, postage prepaid, to her private mailbox address of record used in related proceedings at 15900 W. 10 Mile Road, Suite 211, PMB 1046, Southfield, Michigan 48075, all pursuant to MCR 2.107(C)(3) and MCR 2.107(B).

/s/ Conrad A. Rockenhaus

Conrad Alan Rockenhaus, Defendant Pro Se

Dated: July 2, 2026